

HOUSE No. 3597**The Commonwealth of Massachusetts**

PRESENTED BY:

David M. Rogers and David Biele*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to protect Native American heritage.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>David M. Rogers</i>	<i>24th Middlesex</i>	<i>1/16/2025</i>
<i>David Biele</i>	<i>4th Suffolk</i>	<i>1/16/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>3/21/2025</i>
<i>Michelle L. Badger</i>	<i>1st Plymouth</i>	<i>4/21/2025</i>
<i>Natalie M. Blais</i>	<i>1st Franklin</i>	<i>1/25/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>3/25/2025</i>
<i>Rob Consalvo</i>	<i>14th Suffolk</i>	<i>4/10/2025</i>
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>2/4/2025</i>
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>5/9/2025</i>
<i>Mindy Domb</i>	<i>3rd Hampshire</i>	<i>3/21/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>6/11/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>5/23/2025</i>
<i>Tara T. Hong</i>	<i>18th Middlesex</i>	<i>3/21/2025</i>
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>4/3/2025</i>
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>5/5/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>1/22/2025</i>
<i>David Paul Linsky</i>	<i>5th Middlesex</i>	<i>3/24/2025</i>
<i>Adrian C. Madaro</i>	<i>1st Suffolk</i>	<i>3/21/2025</i>

<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>4/8/2025</i>
<i>Adrienne Pusateri Ramos</i>	<i>14th Essex</i>	<i>4/8/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>3/22/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>5/13/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>4/2/2025</i>
<i>Erika Uyterhoeven</i>	<i>27th Middlesex</i>	<i>3/6/2025</i>
<i>David T. Vieira</i>	<i>3rd Barnstable</i>	<i>10/21/2025</i>
<i>Tommy Vitolo</i>	<i>15th Norfolk</i>	<i>4/7/2025</i>

HOUSE No. 3597

By Representatives Rogers of Cambridge and Biele of Boston, a petition (accompanied by bill, House, No. 3597) of David M. Rogers, David Biele and others relative to Native American heritage. Tourism, Arts and Cultural Development.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3248 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to protect Native American heritage.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. As used in this section, the following words shall, unless the context
2 otherwise requires, have the following meanings:—

3 "Native American" as defined in the Native American Graves Protection and Repatriation
4 Act in accordance with 25 U.S.C. 3001 et seq.

5 "funerary objects" as defined in the Native American Graves Protection and Repatriation
6 Act in accordance with 25 U.S.C. 3001 et seq.

7 "sacred objects" as defined in the Native American Graves Protection and Repatriation
8 Act in accordance with 25 U.S.C. 3001 et seq.

9 "objects of cultural patrimony" as defined in the Native American Graves Protection and
10 Repatriation Act in accordance with 25 U.S.C. 3001 et seq.

11 SECTION 2. The penalties and requirements of the Native American Graves Protection
12 and Repatriation Act in accordance with 25 U.S.C. 3001 et seq. shall be enforced if an agency,
13 organization, entity, or department receiving funds of any kind from the Commonwealth or any
14 local government therein; or a trust, unincorporated association, nonprofit corporation organized
15 under Chapter 180 of the Massachusetts General laws or public charity duly registered with the
16 Office of the Attorney General moves to deacquisition any Native American funerary objects,
17 human remains, sacred objects, or objects of cultural patrimony.